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Case Number: 24TRCV03474 Hearing Date: July 1, 2026 Dept: P

Demurrer and Motion to Strike

Moving Party: Defendant Nitin Patel

Responding Party: None

RULING

The court considered the moving papers. Moving Defendant's Demurrer to Plaintiffs' complaint is SUSTAINED in its entirety without leave to amend. Moving Defendant's Motion to Strike is GRANTED in its entirety without leave to amend.

PROCEDURAL BACKGROUND

On October 16, 2024, Plaintiffs Tatiana Conway, Randy Allen Jr., Ra'Myla Allen, and Ra'Kyrah Allen (collectively, "Plaintiffs") filed a complaint against Defendants Wyndham Destinations, Inc., Wyndham Worldwide Corporation, ANMOL 13 LLC, Super 8 by Wyndham Torrance LAX Airport Area ("Super 8"), Nitin Patel, and DOES 1 through 20, inclusive (collectively, "Defendants"), alleging causes of action for (1) Battery; (2) Negligence; (3) Intentional Infliction of Emotional Distress ("IIED"); (4) Fraudulent Concealment; (5) Private Nuisance; (6) Public Nuisance; and (7) Breach of Contract.

On November 19, 2024, Plaintiffs filed an amendment to the complaint, naming DOE 1 as Ashish Patel (“Ashish”).

On June 26, 2025, Plaintiffs filed an amendment to the complaint, naming DOE 3 as Torrance Hospitality, LLC.

On August 15, 2025, Super 8 and Asish filed a demurrer and motion to strike. On September 29, 2025, the court sustained the demurrer as to each of Plaintiffs' causes of action except for the second cause of action for negligence and granted the motion to strike in its entirety without leave to amend.

On May 26, 2026, Defendant Nitin Patel (“Moving Defendant”) filed the instant demurrer and motion to strike.

FACTUAL BACKGROUND

Plaintiffs allege that on October 26, 2022, they checked into the Subject Hotel and were provided Room 323. (Complaint, ¶ 16.) Plaintiffs allege that on October 27, 2022, Plaintiffs awoke with bed bug bites. (Complaint, ¶ 17.) Plaintiffs allege that they reported the incident to the front desk and were told that refunds could not be issued, nor could Plaintiffs switch rooms until the manager returned, but staff would clean Plaintiffs' room in the meantime. (Complaint, ¶ 18.)

Next, Plaintiffs allege that on October 28, 2022, Plaintiffs awoke with more bed bug bites. (Complaint, ¶ 19.) Plaintiffs allege that they went to the front desk but were told that they could not provide assistance until the manager returned. (Complaint, ¶ 20.) Plaintiffs allege that on the same day, they checked out of the Subject Hotel and sought medical treatment. (Complaint, ¶¶ 21-22.)

Plaintiffs allege that Defendants knew of the bed bug infestation, as numerous online reviews from past guests state that they woke up with bed bug bites after staying at the Subject Hotel. (Complaint, ¶ 30.) Plaintiffs allege that Defendants did nothing to eradicate the bed bug infestation or warn hotel guests of the unsanitary conditions despite their knowledge of the infestation. (Complaint, ¶ 30.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.)

When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (*Hahn, supra*, 147 Cal.App.4th at 747.) On demurrer, a court does "not accept contentions, deductions or conclusions of fact or law." (*Simonyan v. Nationwide Insurance Company of America* (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (*Rakestraw v. California Physicians' Serv.* (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (*Ibid.*)

DISCUSSION

Moving Party's Argument

Moving Defendant demurs to every cause of action in Plaintiffs' complaint except for their negligence cause of action. Moving Defendant argues that Plaintiffs have failed to allege facts showing that Moving Defendant acted with intent to harm Plaintiffs or that Moving Defendant had notice or knowledge of any bed bug infestation. Moving Defendant argues that Plaintiffs' nuisance causes of action are duplicative of Plaintiffs' negligence cause of action. Finally, Moving Defendant argues that Plaintiffs have not alleged the material terms of any contract they entered into with Moving Defendant, or that Plaintiffs performed their obligations or were excused for their nonperformance.

Moving Defendant moves to strike Plaintiffs' prayer for punitive damages and supporting allegations and Plaintiffs' prayer for attorney's fees. Moving Defendant argues that Plaintiffs have failed to allege despicable conduct by Moving Defendant, and at most, Plaintiffs allege negligent conduct by Moving Defendant which is insufficient to support an award of punitive damages. Moving Defendant argues that Plaintiffs have failed to allege a right to recover attorney's fees based on statute or contract.

Merits of the Motion

A. Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer "in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer." (Code Civ. Proc. Section 430.41(a).)

Here, Moving Defendant's counsel declares that on May 6, 2026, she sent a letter to Plaintiffs' counsel requesting to meet and confer, but did not receive a response. (Tatikian Decl., ¶¶ 5-6.) Moving Defendant's counsel declares that on May 20, 2026, she emailed Plaintiffs' counsel, repeating her request to meet and confer, but did not receive a response. (Tatikian Decl., ¶¶ 7-8.)

Therefore, the court finds that the meet and confer requirements have not been satisfied. However, the court will still discuss the merits of Moving Defendant's instant demurrer because a failure to comply with the meet and confer requirements alone does not defeat a demurrer. (Code Civ. Proc. Section 430.41(a)(4).)

B. First Cause of Action: Battery

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (So v. Shin (2013) 212 Cal.App.4th 652, 669.)

Here, Plaintiffs allege that Moving Defendant had actual knowledge of an active bed bug infestation due to online reviews from past guests. (Complaint, ¶ 30.) However, Plaintiffs have not alleged where the reviews were posted, when they were posted, or by whom they were posted, such that the court finds that Plaintiffs' allegations regarding Moving Defendant's knowledge of the infestation are conclusory. Anonymous reviews which fail to detail the dates of the guests' stay or the rooms they stayed in do not provide a sufficient factual basis for imputing knowledge of the bed bug infestation to Moving Defendant. Therefore, the court finds that Plaintiffs have not adequately alleged that Moving Defendant acted with the intent to harm them.

Accordingly, Moving Defendant's Demurrer to Plaintiffs' first cause of action is SUSTAINED.

C. Third Cause of Action: Intentional Infliction of Emotional Distress

"The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of

that usually tolerated in a civilized community.” (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.)

In addition, “it is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff or occur in the presence of a plaintiff of whom the defendant is aware.” (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 1002, citing Christensen v. Superior Court (1991) 54 Cal.3d 868, 903.)

The court finds that Plaintiffs’ complaint contains only conclusory allegations reciting the elements of an IIED cause of action. Plaintiffs have not alleged that Moving Defendant intentionally placed the bed bugs in Plaintiffs’ room or otherwise directed conduct at Plaintiffs. Further, Plaintiffs fail to provide factual allegations showing that Moving Defendant acted with intent or reckless disregard. Instead, Plaintiffs’ complaint alleges only that Moving Defendant had knowledge of the infestation due to online reviews from previous hotel guests. (Complaint, ¶ 30.) As previously discussed by the court, Plaintiffs have failed to sufficiently allege facts showing that Moving Defendant had knowledge of the bed bug infestation such that Plaintiffs have failed to allege that Moving Defendant acted with an intent to harm Plaintiffs.

Therefore, the court finds that Plaintiffs have failed to state a cause of action for IIED.

Accordingly, Moving Defendant’s Demurrer to Plaintiffs’ third cause of action is SUSTAINED.

D. Fourth Cause of Action: Fraudulent Concealment

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.)

A concealment cause of action has a more relaxed specificity requirement as compared to affirmative misrepresentations because a concealment claim does not assert that Defendant actively or affirmatively defrauded the public in general of Plaintiff in particular. The rule of specifically pleading how, when, where, to whom and by what means, misrepresentations were communicated is intended to apply to affirmative misrepresentations and not to concealment. (Alfaro v. Community Housing Improvement System & Planning Assn, Inc. (2009) 171 Cal.App.4th 1356 at 1384.)

As the court has previously discussed, but for Plaintiffs’ conclusory allegation that multiple past hotel guests submitted reviews in which they complained of bed bugs, Plaintiffs have failed to allege specific facts showing that Moving Defendant had knowledge of a bed bug infestation. Therefore, Plaintiffs have failed to adequately allege the elements of a cause of action for fraudulent concealment.

Accordingly, Moving Defendant’s Demurrer to Plaintiffs’ fourth cause of action is SUSTAINED.

E. Fifth Cause of Action: Private Nuisance

To establish an action for private nuisance, (1) “the plaintiff must prove an interference with his use and enjoyment of his property”; (2) “the invasion of the plaintiff’s interest in the use and enjoyment of the land must be substantial, that is, that it causes the plaintiff to suffer substantial actual damage”; (3) “the interference with the protected interest must not only be substantial, but it must also be unreasonable, i.e., it must be of such a nature, duration, or amount as to constitute unreasonable interference with the use and enjoyment of the land.” (Mendez v. Rancho Valencia Resort Partners, LLC (2016) 3 Cal.App.5th 248, 262-263, citations, italics, brackets, and quotation marks omitted.)

"Although 'any interest sufficient to dignified as a property right' will support an action based on private nuisance...such right does not inure in favor of a licensee, lodger or employee." (Venuto v. Owens-Corning Fiberglas Corp. (1971), 22 Cal.App.3d 116, 125, quoting Prosser on Torts (3d ed.) at 613-14.)

Here, Plaintiffs' complaint alleges that Plaintiffs were guests at the Subject Hotel, rendering Plaintiffs "lodgers" without the requisite property interest. (Complaint, ¶ 16.) Therefore, Plaintiffs' cause of action for private nuisance fails. Further, as the court will discuss below, the court finds that Plaintiffs' nuisance causes of action are duplicative of their negligence cause of action.

Accordingly, Moving Defendant's Demurrer to Plaintiffs' fifth cause of action is SUSTAINED.

F. Sixth Cause of Action: Public Nuisance

"Anything which is injurious to health...or is indecent, or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property...is a nuisance." (Civil Code Section 3479.) "A public nuisance is one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal." (Civil Code Section 3480.) "To qualify, and thus be enjoined, the interference [with collective social interests] must be both substantial and unreasonable." (Birke v. Oakwood Worldwide (2009), 169 Cal. App. 4th 1540, 1547, emphasis in original.) "A private person may maintain an action for a public nuisance, if it is specially injurious to himself, but not otherwise." (Civ. Code, Section 3493.)

Historically, "[w]here negligence and nuisance causes of action rely on the same facts about lack of due care, the nuisance claim is a negligence claim." (El Escorial Owners' Assn. v. DLC Plastering, Inc. (2007), 154 Cal.App.4th 1337, 1348.) "The nuisance claim 'stands or falls with the determination of the negligence cause of action' in such cases." (Melton v. Bousted (2010), 183 Cal.App.4th 521, 542, quoting Pamela W. v. Millsom (1994), 25 Cal.App.4th 950, 954, fn. 1.) However, the court in Lynch v. Peter & Associates etc. recently concluded that "[n]uisance is an entirely separate cause of action from negligence, and the analysis should focus on whether the plaintiff has alleged all necessary elements of the claim." (Lynch v. Peter & Associates etc. (2024), 104 Cal.App.5th 1181, 1198.) The court in Lynch further stated that even if a plaintiff's "nuisance claim relies on the same facts about lack of due care supporting the negligence claim, it does not mean the claims are identical or duplicative." (Ibid.)

Here, Plaintiffs have not alleged any facts showing that the bed bug infestation affected a considerable number of persons or that the injuries Plaintiffs suffered differed from the harm that would be suffered by other members of the public. Further, the court finds that Plaintiffs have failed to allege additional facts to show how their nuisance causes of action differ from their negligence cause of action, such that Plaintiffs' sixth cause of action is duplicative of their second cause of action for negligence.

Accordingly, Moving Defendant's Demurrer to Plaintiffs' sixth cause of action is SUSTAINED.

G. Seventh Cause of Action: Breach of Contract

To state a cause of action for breach of contract, a plaintiff must be able to establish "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

If a breach of contract claim "is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference." (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 307.) In some circumstances, a plaintiff may also "plead the legal effect of the

contract rather than its precise language.” (Construction Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 198-199.)

Here, Plaintiffs merely allege that they “entered into a written contract for the rent of Plaintiffs’ room.” (Complaint, ¶ 132.) Plaintiffs have failed to attach a copy of the written agreement to the complaint and have failed to state the terms of the contract verbatim within the complaint itself. Plaintiffs also have not pled the legal effect of the written agreement.

Therefore, the court finds that Plaintiffs have failed to state a cause of action for breach of contract.

Accordingly, Moving Defendant’s Demurrer to Plaintiffs’ seventh cause of action is SUSTAINED.

H. Motion to Strike

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc. Section 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc. Section 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws.(Code Civ. Proc. Section 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc. Section 437(a).)

Moving Defendant moves to strike Plaintiffs’ prayers for punitive damages and attorney’s fees and Paragraphs 64, 81, 92, and 112 of Plaintiffs’ complaint which allege that Moving Defendant’s conduct was malicious, fraudulent, or oppressive, pursuant to Civil Code Section 3294.

As discussed above, the court finds that Plaintiffs have failed to allege facts showing that Moving Defendant’s conduct was intentional, much less rising to the level of malicious, oppressive, or fraudulent.

Accordingly, Moving Defendant’s Motion to Strike Plaintiffs’ prayer for punitive damages and Paragraphs 64, 81, 92, and 112 of Plaintiffs’ complaint is GRANTED.

Regarding Plaintiffs’ prayer for attorney’s fees, the court has sustained Moving Defendant’s demurrer to Plaintiffs’ breach of contract cause of action, and Plaintiffs have not identified any other basis for awarding attorney’s fees.

“Except as attorney’s fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties.” (Code Civ. Proc., Section 1021.)

Accordingly, Moving Defendant’s Motion to Strike Plaintiffs’ prayer for attorney’s fees is GRANTED.

Therefore, Moving Defendant’s Motion to Strike is GRANTED in its entirety.

I. Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 (“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”).) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Here, Plaintiffs have failed to oppose the instant motion and have previously failed to appear at the hearing regarding the first demurrer filed in this action. As there has been no showing that the pleading can be amended, the court DENIES leave to amend.

CONCLUSION

Based on the foregoing, Moving Defendant's Demurrer to Plaintiffs' complaint is SUSTAINED in its entirety without leave to amend. Moving Defendant's Motion to Strike is GRANTED in its entirety without leave to amend.

Moving party is ordered to give notice of ruling.